

Shiv Veer v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 25 January 2023 · WRIT - C No. - 1142 of 2023 · **Writ disposed with a direction to file objections to the provisional assessment within fifteen days and for respondent No. 4 to decide them under the Electricity Supply Code, 2005; the recovery abides that decision.**

HEADNOTE

A writ challenging a recovery notice for electricity-theft dues, issued when no final assessment order was said to exist, was disposed of by directing the consumer to object to the provisional assessment notice within fifteen days. Respondent No. 4 must decide those objections by the procedure prescribed under the Electricity Supply Code, 2005. The impugned recovery abides that decision. If objections are not filed, the respondents may proceed in accordance with law.

FACTUAL SUMMARY

Shiv Veer petitioned the Allahabad High Court against the State of U.P. and four others, challenging a recovery notice dated 9 November 2022 issued by respondent No. 3 for electricity dues alleged from theft. He contended that the recovery citation had been issued although no final assessment order existed. A provisional assessment notice dated 6 April 2022 was already on record. The matter was adjourned on 13 January 2023 for instructions, and on 18 January 2023 coercive steps were stayed. On 25 January 2023 none appeared for the respondents.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

objections to a provisional assessment before recovery of theft dues

HOLDING

Where recovery of electricity-theft dues is challenged because no final assessment order exists, and a provisional assessment notice is already on record, the consumer is to file objections to that notice within fifteen days before respondent No. 4, who must decide them by the procedure prescribed under the Electricity Supply Code, 2005. The impugned recovery abides that decision. If objections are not filed in time, the respondents may proceed further in accordance with law. ¶ 1-4

FLAG The order directs a decision by the procedure prescribed under the Electricity Supply Code, 2005 and cites no clause number.

PRINCIPLE TAGS

UP-2005::procedure The Court sent the consumer to file objections to the provisional assessment notice dated 6 April 2022 and required respondent No. 4 to decide them under the Electricity Supply Code, 2005, with the 9 November 2022 recovery abiding that decision. ¶ 1-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY NOTICE DATED 9 NOVEMBER 2022 WAS ILLEGAL BECAUSE NO FINAL ASSESSMENT ORDER EXISTED

Not adjudicated. The recovery abides the decision respondent No. 4 takes on objections to the provisional assessment. ¶ 1-4

NOT DECIDED — THE MERITS AND QUANTUM OF THE ALLEGED ELECTRICITY-THEFT DUES

Left to the Supply Code procedure. If objections are not filed within fifteen days, the respondents may proceed in accordance with law. ¶ 1-4

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.